

CITY OF CHEYENNE – CITY COUNCIL AGENDA ITEM SHEET

DATE OF COUNCIL MEETING: July 8, 2013

TYPE OF DOCUMENT: (☒ORDINANCE) (☐RESOLUTION) (☐PRELIMINARY PLAT/
PRELIM PUD ZONE CHANGE) (☐LEASE/CONTRACT) (☐CHANGEORDER/CONTRACT
MODIFICATION) (☐CONSIDER BID) (☐APPLICATIONS/LICENSES/PERMITS)
(☐APPOINTMENTS) (☐ANNOUNCEMENTS/REPORTS/MOTIONS) (☐ OTHER)

SPONSOR: (ORDINANCE OR RESOLUTION) Sean Allen

EXACT WORDING FOR AGENDA: An Ordinance vacating a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming (located at the northwest corner of the intersection of E. 4th and Evans Avenues).

(1% Sales Tax Funding/Years) N/A

(Other Funding _____)

CONTACT PERSON: Brett Walker PHONE: 637-6305 DEPT: Development Office

OTHER CITY DEPTS AFFECTED: N/A

OTHER GOV'T AGENCIES AFFECTED: N/A

FINANCIAL IMPACT PROPOSED OR CONDITIONS WHICH AFFECT CITY: N/A

CONTRACT TERM: N/A STARTING DATE: N/A

	YES	NO	N/A
Is funding budgeted?	☐	☐	☒
Were Bids called for?	☐	☐	☒
Affected parties notified of Council procedure and dates?	☒	☐	☐
Has bond, insurance or other security been arranged?	☐	☐	☒
Have legal descriptions been checked?	☒	☐	☐

Agenda Item approved / reviewed by :

Risk Mgr () City Attorney () Dept. Head (X)

General Comments: The Cheyenne Planning Commission recommended approval of the above described Vacation Request by a unanimous vote of 4 to 0 at their meeting on July 1, 2013. See the attached Staff Report for more definitive information. The motion was made pursuant to criteria outlined in Section 2.1.4.d of the Cheyenne UDC.

Submitted by: Brandon Cammarata Title: Planning & Dev Dir. Date: July 3, 2013

UPON PASSAGE OF THE AGENDA ITEM, COPIES SHOULD BE SENT TO:

City Clerk's Office

Engineering Tech Branch

Development Office

Building Safety Office

STAFF REPORT

A Portion of Evans Avenue **Summary**

Street Vacation Process

CASE NUMBER(s): UDC-13-00192

FILE CODE: RDEV-V

PREPARED BY: Brett Walker

MEETING July 1, 2013 – Planning Commission

DATES: July 8, 2013 – City Council

REQUIRED DOCUMENTS SUBMISSION: All required documents have been submitted and reviewed by staff.

- Complete Application
- Vacation Map

RECOMMENDATION: The Planning and Development Office recommends approval of the vacation request pursuant to criteria outlined in Section 2.1.4.d of the Cheyenne UDC.

STAFF REPORT UPDATE (7/2/2013): At its regular meeting on July 1, 2013, The Cheyenne Planning Commission recommended approval of the vacation request by a vote of 4-0. The motion was made pursuant to criteria outlined in Section 2.1.4.d of the Cheyenne UDC.

STAFF REPORT

A Portion of Evans Avenue

Street Vacation Process

CASE NUMBER(s): UDC-13-00192

FILE CODE: RDEV-V

PREPARED BY: Brett Walker

MEETING July 1, 2013 – Planning Commission
DATES: July 8, 2013 – City Council

APPLICANT(S): Carlos and Charito Ramirez 805-717-7595
310 E. 4th Ave.
Cheyenne, WY 82001

AGENT: Carlos and Charito Ramirez 805-717-7595
310 E. 4th Ave.
Cheyenne, WY 82001

PROJECT: Evans

WORK DESCRIPTIONS: To vacate ROW

LOCATION:

- (1) Legal Description: a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming
- (2) Location: the northwest corner of the intersection of E. 4th and Evans Avenues
- (3) Address: N/A (to become part of 310 E. 4th Street)

AREA TO BE VACATED: 4,068 sqft

CURRENT ZONING: MR-1

PROPOSED ZONING: MR-1

EXISTING LAND USE: Driveway access to lot, ROW maintained by City

PROPOSED LAND USE: Driveway access to lot, yard to be maintained by owners

SURROUNDING LAND USES:

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Residential	MR-1	City
South	Residential	MR-1	City
East	Airport (and related)	AD	City
West	Residential	MR-1	City

EXECUTIVE SUMMARY:

This Vacation Request is for 4,086 square feet of Evans Avenue Right-of-Way adjacent to a single lot, which would then become part of the single property ownership. This Request would include that ROW up to the attached, paved Greenway, which would remain in the public space. Typically, any property owner is responsible for the maintenance of the sidewalk and Right-of-Way adjacent to their property. Given the considerable width of the ROW not used for transportation due to the circumstances related to the closure of 4th Avenue, the applicants have submitted the request in order to extend their side yard lot line out (it's currently at or about 0' from the house, like all the homes along Evans Avenue to the north).

In 2005, Evans Avenue was reconstructed with Greenway along the west side of the road in lieu of a sidewalk. At that time, it was determined that the problematic intersection that existed at E. 4th Avenue and Evans would be remedied by closing 4th Avenue, which now ends in the bulb-out (though emergency equipment can still get to 4th from Evans). The reconstruction included the new driveway and current configuration of landscaping and street trees along Evans. Parks and Recreation ended up "inheriting" the maintenance for this pocket area. They extended a metered irrigation tap and routinely mow, edge, and weed the area. They conduct backflow prevention and blowouts of the system, as well as a monthly irrigation check. They maintain the area to this day and fully support this vacation request, as it would relieve them from the responsibility. The irrigation tap will either have to be disconnected or transferred to the property owner should the vacation request be approved.

VACATION DATA:

In reviewing, providing comments, and making recommendations and decisions on a proposed street vacation, the staff, Planning Commission and City Council shall use the following criteria:

The vacation meets the purposes, intent, and applicable standards of Article 4.

While the vacation would not substantially alter the connectivity in the area, it would reduce the ROW to a width of about 60', where the rest of Evans Avenue is 80'. Evans is classified as a collector road, and the best practice is to reduce the number of accesses onto collectors, due to the volume. Evans most closely resembles a Type C Collector, which calls out for at least 70' of ROW (See Attached Exhibit). The back of curb roadway width narrows along this stretch from about 40' to 34', and no on-street parking is allowed adjacent to the area that is the subject of this

vacation, though it is allowed immediately to the north, on the west side of the street. This property does not access Evans directly, instead using the dead-end “bulb-out” on 4th Avenue.

The ability of all existing and potential future development on adjacent lots to meet all applicable standards for development in the existing zoning district, including other development options in the event that any specific development proposed in association with the vacation is not executed after approval.

The current proposal tied to this request is to provide for more yard area on the east side of the home - essentially the same function as it currently serves. There are no known plans by the applicant to rebuild or remodel, but the vacation could potentially enable construction closer to Evans Avenue and the Greenway.

This vacation request will increase the property area by 73%, increase the lot frontage by 41%, and increase the rear lot line by 61%. The lot would be considered a Type DD5 Lot (see attached). The side yard setback for a primary structure is 10’ along a street (e.g., Evans Ave.), and 25’ for an accessory structure (See Aerial 2 for Building Envelope).

Current fence regulations allow for property owners to fence along their property lines, except where there is a line-of-site triangle requirement at an intersection (a corner lot). In this case, a 4’ tall fence could potentially be erected along the new lot line. However, no fence shall be constructed within 2’ of any public sidewalk (or Greenway), irrespective of where the lot line is.

The vacation reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities.

The vacation of this ROW will limit future widening, if necessary, and could impact the streetscape by reducing the “open space” currently maintained there, especially if the new ownership decides to fence in the property. Given that this ROW was reconstructed only 10 years ago, it is assumed that sound planning and urban design principles were considered when the intersection was redesigned.

The application meets the public interest, and is not otherwise prohibited by other city, state or federal laws.

Typically, any property owner is responsible for the maintenance of the sidewalk and adjacent ROW (ref. Sections 12.04.040 and 8.60.035, Cheyenne City Code)

The review and recommendations of other reviewing bodies.

Both the City Engineering and Parks and Recreation Departments support this request. Please see the attached letter from Engineering. No other departments had comments.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

BOPU: Linda Gunter

With the approval of the vacation of portion of Evans Ave. Lot 10, Block 12, Pershing Heights. In April 25, 2005 the parks department had installed a ¾" irrigation tap. If you plan to use this ¾" irrigation tap then the (owner) needs to come the Board of Public Utilities and set up an irrigation account. If you are not planning to use this irrigation tap please call us here at the Board of Public Utilities and are crews will come out kill tap at the main.

AGENCIES AND REVIEWERS RESPONDING WITHOUT COMMENTS: City Attorney, County Assessor, Development, Engineering-Traffic, Engineering-Drainage, Engineering-General, Engineering Tech/GIS, Optimum,

AGENCIES AND REVIEWERS NOT RESPONDING: CLF&P

OTHER COMMENTS RECEIVED: None

Encl: Letter from Nathan Beauheim, Asst. City Engineer
Vacation Map
Petition to Vacate
Aerial Map
Type DD5: Detached Dwelling

cc: Owner
Agent/Applicant
File



City Engineer's Office
2101 O'NEIL AVENUE Room 206, Cheyenne, WY 82001
(Phone) 307-637-6268 (Fax) 855-547-4302

February 4, 2013

Mr. Matthew B. Clay
310 East 4th Ave.
Cheyenne, WY 82001

Re: Proposed vacation of a portion of Evans Ave.

Dear: Mr. Clay:

Per your request we have reviewed the proposal to vacate a portion of Evans Ave. adjacent to your property. The City Engineer's Office would support this proposal and has a favorable opinion concerning the long term benefits to the City of Cheyenne and the possibilities of successfully completing the vacation petition submittal.

If you have any questions or we can be of any further assistance, please contact us at your convenience.

Respectfully,

Nathan Beauheim, PE
Acting City Engineer

[illegible]

TO: THE HONORABLE MAYOR

Rick Kayser.
AND MEMBERS OF THE CITY COUNCIL,
CITY OF CHEYENNE, WYOMING

KNOW ALL:

THAT CARLOS M. RAMIREZ & CHARITO RAMIREZ, HUSBAND & WIFE
is the owner of the following described real property:

Lot 10, BLOCK 12, PERSHING HEIGHTS ADDITION

is the owner of the following described real property:

and

is the owner of the follow described real property:

and

is the owner of the follow described real property:

all of which properties are adjacent to the following right-of-way or land

EVANS AVENUE

which the undersigned owners hereby petition to be vacated by the City of Cheyenne. The above named owners constitute the owners of all property abutting the portion of dedicated right-of-way or land for which vacation is requested.

THAT the portion of right-of-way or land which the undersigned owners request to be vacated includes the following sections of dedicated streets and alleys

SEE ACCOMPANYING "LEGAL DESCRIPTION"

adjacent to the following lot (s) and block (s) in the following subdivision:

LOT 10, BLOCK 12, PERSHING HEIGHTS ADDITION

The undersigned petitioners hereby respectfully request that said described portions of dedicated right-of-way or land be vacated by the City of Cheyenne and that title to the vacated area revert to the adjacent property owners in accordance with established policy. An accurate map, prepared by:

JOHN J. STUDLEY, WYO. P.L.S. No. 4828, ^{CHEYENNE} CITY SURVEYOR

a Land Surveyor registered in the State of Wyoming, accompanies this petition and a plat of all the real property and right-of-way described herein has previously been filed with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

DATED THIS

14

DAY OF

May

20

13

Respectfully submitted,



CARLOS M. RAMIREZ



CHARITO RAMIREZ

ATTEST

Signature

Title

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE VACATING A PORTION OF EVANS AVENUE ADJACENT TO LOT 10, BLOCK 12, PERSHING HEIGHTS ADDITION, CHEYENNE, WYOMING (LOCATED AT THE NORTHWEST CORNER OF THE INTERSECTION OF E. 4TH AND EVANS AVENUES)."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the property described as a portion of Evans Avenue adjacent to Lot 10, Block 12, Pershing Heights Addition, Cheyenne, Wyoming be and is hereby vacated as shown on the Vacation Map attached hereto and incorporated herein.

Section 2. That the vacation of a portion of Evans Avenue is in the best interest of the City of Cheyenne and its residents.

Section 3. That said vacated right-of-way shall revert to the adjacent property owner pursuant to Wyoming State Statutes.

Section 4. That the said vacated land shall be subject to any easements, reservations and restrictions of record and as represented on the attached Vacation Map.

Section 5. That the City Clerk is directed to record this ordinance, together with the Vacation Map, with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

Section 6. That the City Engineer's office is directed to change the Official City Map to reflect this vacation and the Official Zoning Map designating the vacation request for the properties as zone MR-1 Medium Density Residential – Established District.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 8. That this ordinance shall be in full force and effect upon its publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

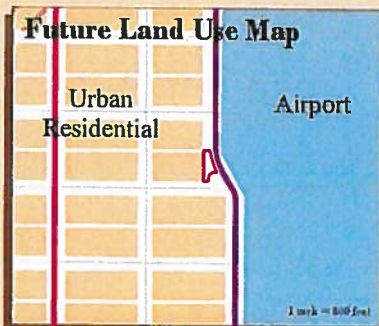
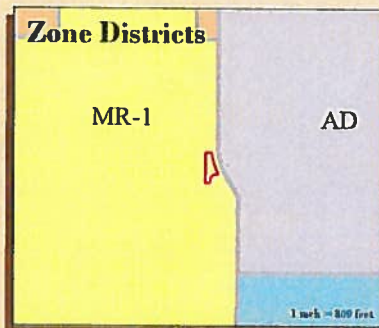
Exhibit Map 1

Evans Avenue Vacation

UDC-13-00192
Street Vacation
Request

A portion of Evans Avenue
adjacent to Lot 10, Block 12
Pershing Heights Addition
Cheyenne, Wyoming

Applicant/Agent:
Carlos and Charito Ramirez



In 2005, Evans Avenue was reconstructed with Greenway along the west side of the road in lieu of a sidewalk. At that time, it was determined that the problematic intersection that existed at E. 4th Avenue and Evans would be remedied by closing 4th Avenue, which now ends in the bulb-out (though emergency equipment can still get to 4th from Evans).



20 June 2013
- BRW -

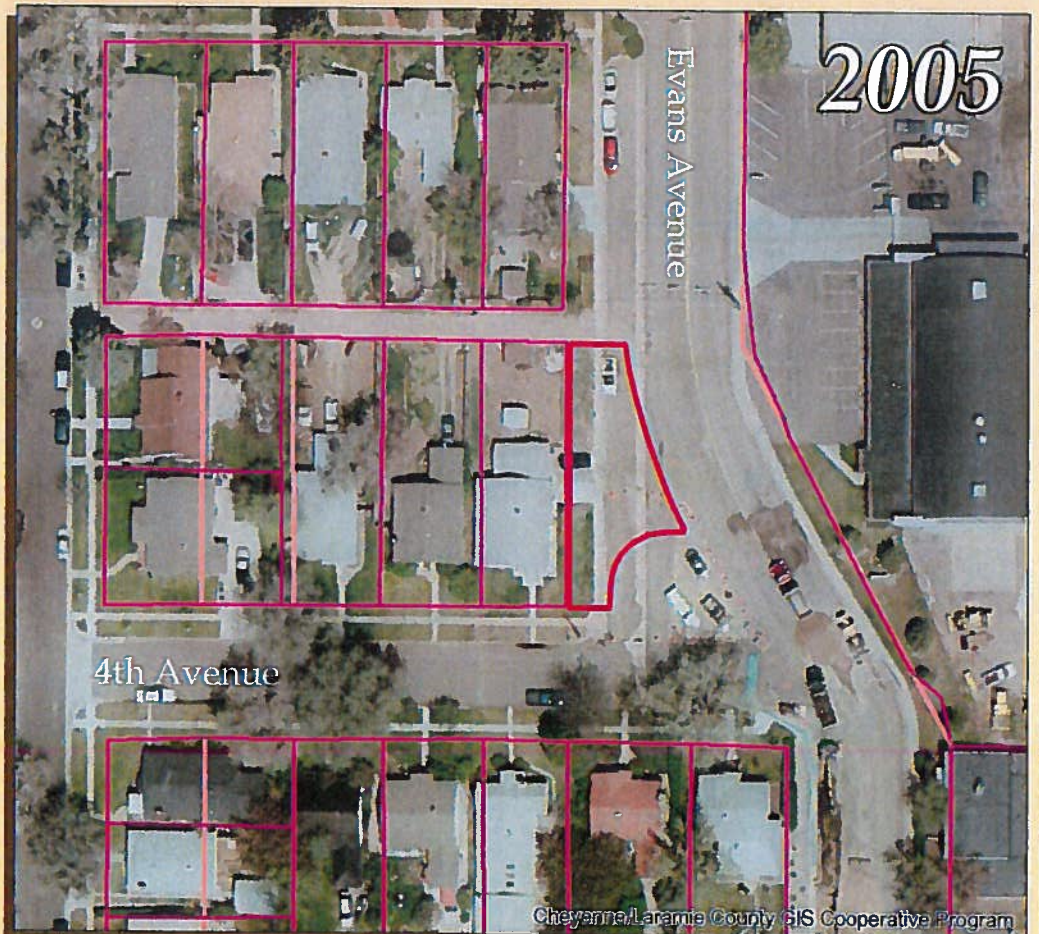
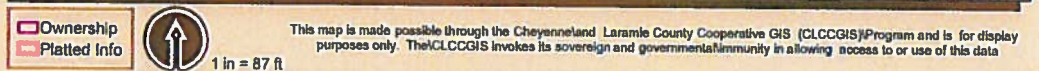
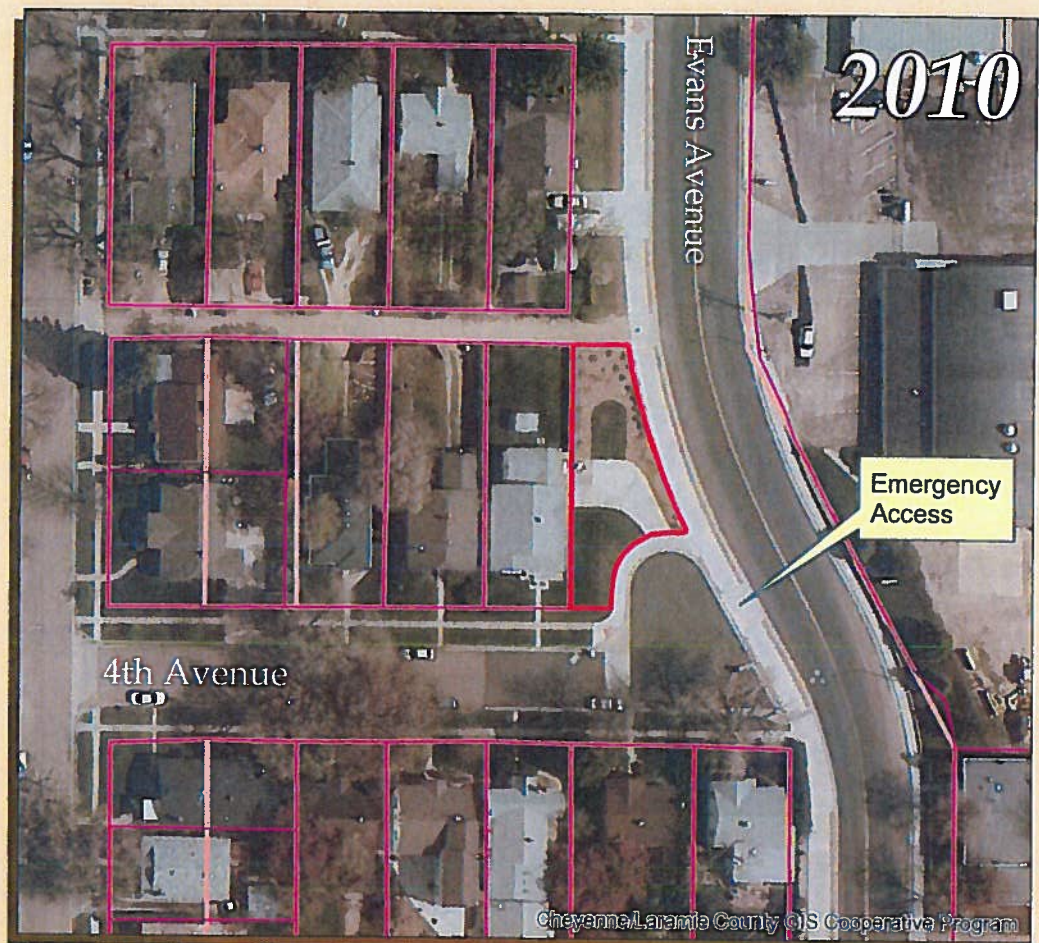
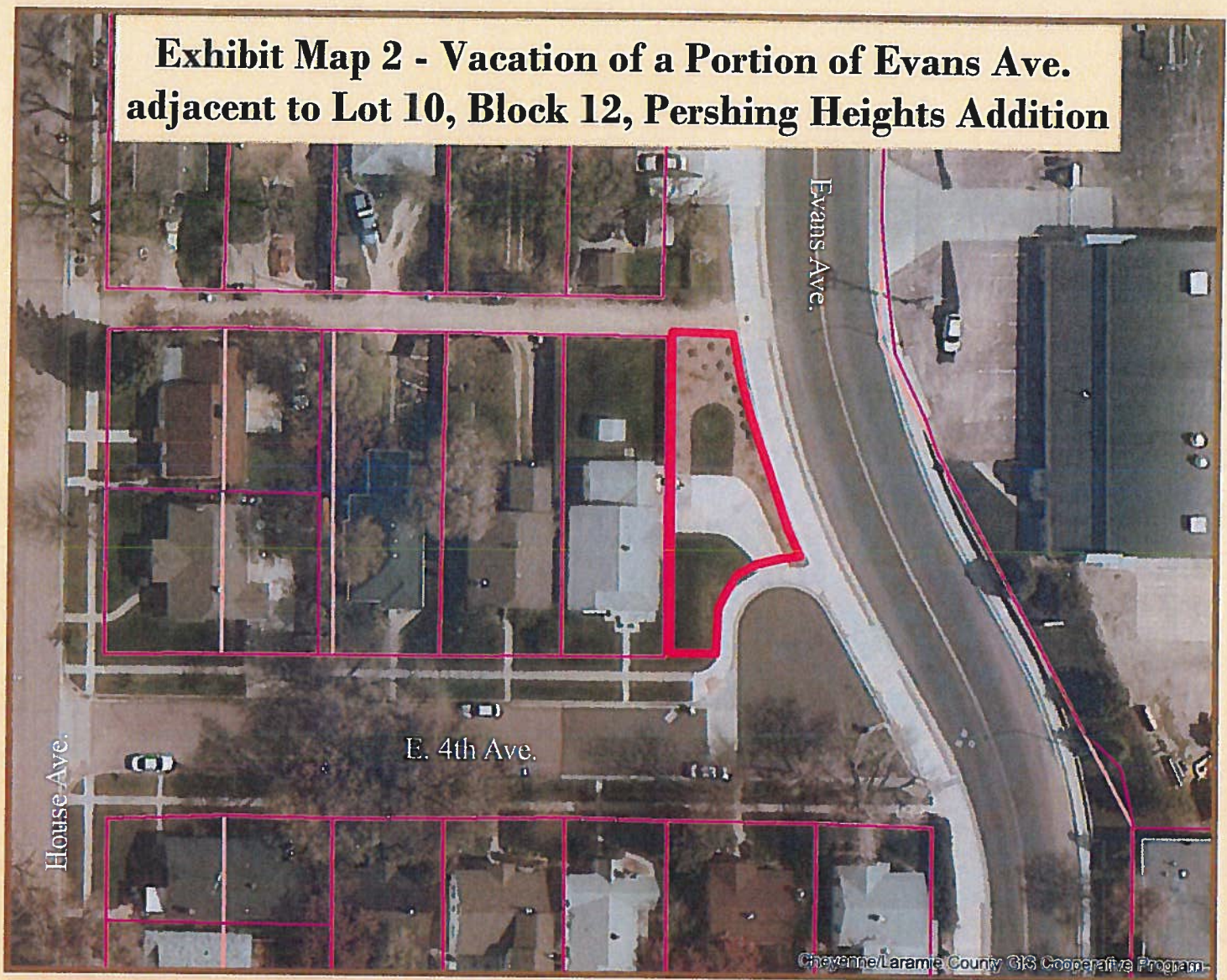


Exhibit Map 2 - Vacation of a Portion of Evans Ave. adjacent to Lot 10, Block 12, Pershing Heights Addition



Applicant/Agent:
Carlos and Charito Ramirez

Application Number(s):
UDC-13-00192

This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS involves its sovereign and governmental immunity in allowing access to or use of this data.

Ownership
Platted Info
County Jurisdiction

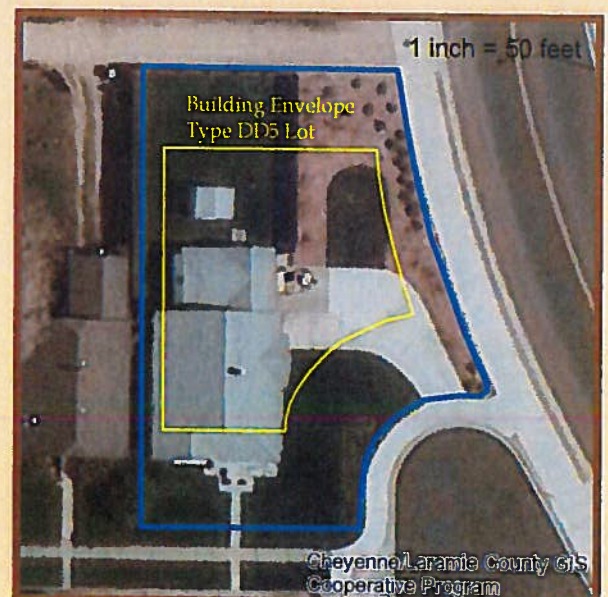
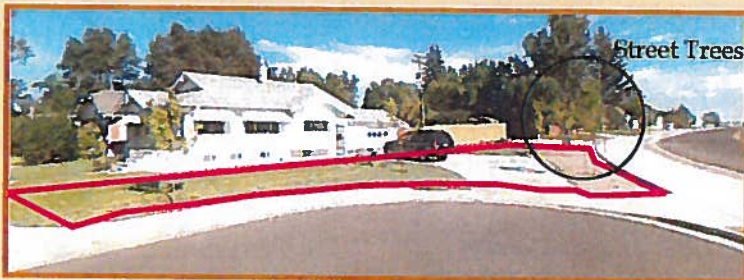


1 in = 60 ft



20 June 2013

BRW



LEGAL DESCRIPTION

That portion of Evans Avenue as it appears on the plat for Cheyenne Airport Addition and recorded in the Laramie County Clerk's Office, further described as follows:

Beginning at the northeasterly corner of Lot 10, Block 12, Pershing Heights Addition on the line common with said Cheyenne Airport Addition; Thence on an Azimuth of 90°11'01" a distance of 26.83 feet;

Thence on a curve to the left having a delta angle of $18^{\circ}10'37''$, a radius of 283.00 feet, a curve length of 89.78 feet, the long chord having an azimuth of $161^{\circ}58'48''$ a distance of 89.41 feet;

Thence on a curve to the left having a delta angle of $110^{\circ}53'39''$, a radius of 25.15 feet, a curve length of 48.68 feet, the long chord having an azimuth of $230^{\circ}29'59''$ a distance of 41.43 feet;

Thence on an Azimuth of $183^{\circ}03'09''$ a distance of 18.64 feet.

Thence on an Azimuth of $270^{\circ}15'37''$ a distance of 18.09 feet to the southeasterly corner of said Lot 10, Block 12, Pershing Heights Addition;

Thereon an Azimuth of $359^{\circ}57'49''$ a distance of 125.28 feet on and along the easterly boundary of said Lot 10, block 12 to the point of beginning; Said parcel containing 4,067.8 square feet more or less.

Said parcel containing 4,067.8 square feet more or less.

⚠

LEGEND

GET THIS SURVEY. NO !! DEAL WITH ALLEGED SURVEY CAP.

FOUND ALUMINUM BATTERY CASE, PLS NO. 1200.

©
FOOTED FROM P. 118

ADDED TO THE VACATED

APPROVALS

APPROVED BY THE CITY OF CHEYENNE PLANNING COMMISSION THIS _____ DAY OF _____, 2013.

DEVELOPMENT DIRECTOR

APPROVED BY THE CITY COUNCIL OF THE CITY OF CHEYENNE, WYOMING THIS _____ DAY OF _____, 2013.

ATTEST

NOTARY PUBLIC

CERTIFICATE OF SURVEYOR

STATE OF MICHIGAN
(
COUNTY OF LANSING
(
SS
VS

I, John J. Steadley, Younging Registered Professional Land Surveyor No. 4828, employee/agent for The City of Cheyenne, do hereby certify the VACATION MAP herein was prepared by me from surrounding plate and documents of record and is correct to the best of my knowledge.

VACATION MAP

FOR

A PORTION OF EVANS AVENUE ADJACENT TO LOT 10, BLOCK 12, PERSHING HEIGHTS ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

PREPARED FEBRUARY 2013

ADJACENT OR AFFECTED LANDOWNERS LIST

[illegible]

CURVE NO.	LENGTH	RADIUS	DELTA	CHORD ADJUST	CHORD DIFF.
1-1	85.79	203.00	1810.37	161.59	19.41
2-2	44.68	26.18	160.33	238.28	41.41

NOTES

1. MAPS OF SEARIMOS IS BY SP8 OBSERVATIONS USING CITY OF CHESAPEAKE GRID COORDINATES.
2. TOTAL AREA TO BE VACATED = 4,967.8 SQUARE FEET.
3. NO UTILITIES, SIDEWALK, OR CURBS AND CUTTER IN THE PROPOSED VACATION AREA.

SCALE 1" = 100'

FILING RECORD